Fort Bend County District Court

Cause No. 2024-CV-0020

Sara Davis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-14-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, and failed to control the speed of the vehicle under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the collision was caused by the negligence of a third party over whom Defendant had no control and for whom Defendant is not responsible. Defendant requests that the trier of fact designate that praty as a responsible third party under Section 33.004.

Third, Plaintiff's alleged damages, if any, were caused in whole or in part by a pre-existing or unrelated condition, and Defnedant is not liable for any damages beyond those proximately caused by the collision. Defendant further invokes its right to credit for any settlement amounts under Section 33.012.